

End User Licence Agreement (EULA) - SOC Suite

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This is the official English translation of the Italian EULA .md. It is provided for the Licensee's benefit. In case of any discrepancy the Italian version prevails and is the sole binding text (see art. 13).

This End User Licence Agreement ("Agreement") is entered into between:

Licensors: Nicholas Arcari - email: arcari.nicholas0@gmail.com

and the natural or legal person who installs or uses the SOC Suite software ("Licensee"). By installing or using the software, the Licensee fully accepts the terms below. If the Licensee does not accept them, it must not install or use the software.

The software is licensed free of charge. No consideration is due, either for the licence or for its renewal (see art. 7).

Note: this document is a practical template and does not constitute legal advice. For continued use, review by a legal professional is recommended.

1. Definitions

- **Software:** the "SOC Suite" suite, comprising SOC Toolkit and OSINT Toolkit, distributed as Docker images, together with the accompanying documentation.
- **Licence key:** the token signed by the Licensors that enables use of the Software on a given deployment.
- **Deployment:** a single installation of the Software identified by the LICENSE_DEPLOYMENT_ID value chosen by the Licensee at installation time.
- **Documentation:** the documents accompanying the Software, including README.md, ETHICS.md and THIRD_PARTY_NOTICES.md.

2. Grant of licence

The Licensors grants the Licensee, **free of charge**, a non-exclusive, non-transferable, non-sublicensable and revocable licence to:

- install and use the Software on the deployment for which the Licence key was issued;
- for the validity period stated in the Licence key (expiry included).

The licence is bound to the Deployment: the Licence key is valid only for the LICENSE_DEPLOYMENT_ID for which it was issued.

3. Restrictions

The Licensee may not:

1. copy, distribute, resell, rent, lease or sublicense the Software or the Licence key to third parties;
2. modify, decompile, disassemble or reverse engineer the Software, save within the mandatory limits allowed by law;
3. remove, disable or circumvent the licence verification mechanism or any technical protection measure;
4. remove or alter copyright notices, trademarks or proprietary notices;
5. use the Software beyond the expiry of the Licence key without a valid renewal.

4. Ownership and third-party components

The Software is licensed, not assigned. The Licensor retains all right, title and interest in the Software, including all intellectual property rights. This Agreement transfers no ownership right to the Licensee.

The Software incorporates third-party (open source) software components, each subject to its own licence, listed in the accompanying `THIRD_PARTY_NOTICES.md` document. Such components remain the property of their respective holders and are provided under the terms of their respective licences, which prevail over this Agreement for the part relating to each component.

5. Lawful and ethical use

The Software is a cybersecurity tool intended for defensive activities, analysis and authorised testing. The Licensee undertakes to use it solely in compliance with applicable laws and with the conditions described in the accompanying `ETHICS.md` document. In particular, the Licensee is solely responsible for holding the authorisations required for the activities carried out through the Software. All liability for any unlawful, unethical or unauthorised use of the Software rests solely with the Licensee and not with the Licensor.

6. Personal data and data protection

The Software runs entirely on the Licensee's infrastructure. The Licensor does not collect, receive or have access to the data processed with the Software: the licence check is performed locally, with no outbound communication.

By using the Software - in particular the OSINT and analysis modules - the Licensee may process personal data of third parties. With respect to such processing, the **Licensee acts as an independent data controller** under Regulation (EU) 2016/679 (GDPR) and applicable law, and is solely responsible for: identifying a suitable legal basis; complying with the principles of lawfulness, data minimisation and purpose limitation; providing information to data subjects and handling the exercise of their rights. Since the Licensor does not process such data on the Licensee's behalf, there is no processor relationship between the parties and no agreement under Article 28 GDPR is required. The Licensee shall indemnify the Licensor against any third-party claim arising from data processing carried out through the Software in breach of applicable law.

Activity trail. The Software keeps, on the Licensee's server, an append-only record of security-relevant actions (successful and failed sign-ins, account creation, integration-key changes, licence activation). That record contains usernames and IP addresses and is therefore processing of personal data for which the Licensee is the controller; its retention period is configurable and this article applies to it.

The only personal data processed by the Licensor are the email address and the `LICENSE_DEPLOYMENT_ID` provided by the Licensee for the issuance of the Licence key, processed solely to manage the licence and kept for as long as necessary for that purpose.

7. Free of charge, support and availability

The Software is licensed **free of charge**: no consideration is due for the licence, its activation or its renewal.

The Licensor is not obliged to provide support, maintenance, updates or fixes. Any support activity is provided as a courtesy, with no obligation of result and no guaranteed response times.

The Licensor may at any time modify, suspend or discontinue distribution of the Software, or decline to issue new Licence keys, without this giving rise to any obligation to compensate or indemnify. Licence keys already issued remain valid until their natural expiry.

8. Renewal and termination

The licence terminates automatically on expiry of the Licence key. Renewal, also free of charge, is subject to the issuance of a new key by the Licensor, who is not obliged to grant it. The Licensor may terminate the Agreement

as of right in the event of a breach of the terms by the Licensee. On termination, the Licensee must cease using the Software. Data generated by the Licensee remains its property and on its server.

9. Disclaimer of warranties

To the maximum extent permitted by law, and given the gratuitous nature of the grant, the Software is provided "as is", without warranties of any kind, express or implied, including without limitation the warranties of merchantability, fitness for a particular purpose and non-infringement of third-party rights. The Licensor does not warrant that the Software is error-free or fit for the Licensee's specific needs. Any mandatory warranties and rights provided by law in favour of the Licensee remain unaffected; this Agreement does not intend to exclude or limit them.

10. Limitation of liability

To the maximum extent permitted by law, the Licensor is not liable for any direct, indirect, incidental, special or consequential damage arising from the use or inability to use the Software, including loss of data, business interruption or loss of profit.

As this is a gratuitous grant, the Licensor is liable only within the limits provided by law for services rendered without consideration. These exclusions and limitations **do not apply in the event of the Licensor's wilful misconduct or gross negligence, nor in any other case where liability cannot be excluded or limited by law** (art. 1229 of the Italian Civil Code).

11. Governing law and jurisdiction

This Agreement is governed by Italian law. Any dispute is subject to the exclusive jurisdiction of the court of the place where the Licensor is resident, save for the application of the mandatory consumer-protection rules that apply where the Licensee acts for purposes outside its trade or profession.

12. Specific approval of clauses (arts. 1341-1342 Italian Civil Code)

Under and for the purposes of arts. 1341 and 1342 of the Italian Civil Code, the Licensee declares that, after careful reading, it specifically approves the following clauses: art. 2 (prohibition of assignment and sublicensing; revocability), art. 3 (use restrictions), art. 7 (right to discontinue distribution and absence of support obligations), art. 8 (termination as of right and absence of any renewal obligation), art. 9 (disclaimer of warranties), art. 10 (limitation of liability), art. 11 (exclusive jurisdiction). Specific approval is given by the second signature in the acceptance form.

13. Language

This Agreement is drafted in Italian. An English translation (EULA.en.md) is provided for the Licensee's benefit. In the event of any discrepancy, inconsistency or interpretive doubt between the two versions, the Italian version prevails and constitutes the sole binding text.

14. Contact

For licences, renewals or requests: **arcari.nicholas0@gmail.com**

Acceptance

The Licensee declares that it has read and fully accepts the terms of this Agreement.

Licensee (company / name)

Deployment ID

Place and date

Signature

Specific approval of clauses (arts. 1341-1342 Italian Civil Code)

Place and date

Second signature (specific approval)
